法學英文主題整理：契約法（Contract Law）

> 涵蓋 104-114 年司律一試法學英文考古題，依主題分類彙整詞彙、中英對照與考古題原文。

一、核心詞彙與中英對照

英文	中文	出題年度
contract	契約	多年
offer	要約	114
offeror	要約人	114
offeree	受要約人（承諾人）	114
acceptance	承諾	106、109
counteroffer	反要約	107
enter into (a contract)	締結（契約）	105
terminate / termination	終止	104
privity of contract	契約之相對性	107
third-party beneficiary contract	第三人利益契約	108
warranty	保證；擔保	107
express warranty	明示擔保	107
implied warranty	默示擔保	107
force majeure	不可抗力	109
novation	更新（契約更新）	113
liquidated damages	約定違約金（預定賠償額）	108、113

condition	條件	113
contract of adhesion	附合契約（定型化契約）	111
good faith	誠信原則；善意	111
non-disclosure agreement (NDA)	保密協議	112
intoxicated	醉酒的（影響行為能力）	110
risk of loss	危險負擔	112
void	無效	114
voidable	得撤銷	108
invalid	無效的	108
fraud in the inducement	誘因詐欺	108
power of attorney	授權書；委任狀	114
general power of attorney	一般授權書	114
special power of attorney	特別授權書	114

二、考古題原文與考點提示

1. 要約與承諾（Offer, Acceptance & Counteroffer）

> **107 年第 59 題**
> Under R.O.C. Civil Code, if an offeree responds to an offer by making a ___—in effect, proposes terms other than those contained in the original offer—the law treats that response as the legal equivalent of a rejection.
> (A) rejection (B) acceptance
> (C) offer (D) counteroffer
> → 答案：(D)

106 年第 59 題

An acceptance which arrives late though usually it should have arrived earlier and within a reasonable time by its transmitting manner may nonetheless constitute a contract under R.O.C. Civil Code unless one of the following occurs:

(A) The one making the offer has reason to know the facts and sends without delay a notice informing the offeree of the fact that "acceptance" being late.

(B) The one marking the offer does nothing to inform the offeree of the late acceptance while the former has reason to know the facts of its being late.

(C) The one marking the acceptance explains the reasons of its being late to the offeror.

(D) The one marking the acceptance apologizes to the offeror of its being late.

→ 答案：(A)

109 年第 60 題

Under article 158 of Taiwan Civil Code, an offeree's power of ___ is terminated at the time specified in the offer.

(A) attorney (B) revocation

(C) acceptance (D) counter-offer

→ 答案：(C)

114 年第 70 題

A basic rule of contracts holds that whether an offer has been made depends on the ___ reasonableness of the alleged ___'s belief that the advertisement or solicitation was intended as an offer.

(A) objective, offeror (B) subjective, offeror

(C) objective, offeree (D) subjective, offeree

→ 答案：(C)

考點提示：

- **counteroffer**（反要約）= 拒絕原要約，視為新要約。作答關鍵：看到 "proposes terms other than those contained in the original offer" → 選 counteroffer。
- 遲到的承諾（late acceptance）：依民法規定，要約人「知悉」遲到事實後須「不遲延」通知對方，否則仍構成契約。
- **acceptance**（承諾）的消滅：受要約人的承諾權力在要約指定期限屆滿時消滅（terminated）。
- 要約的判斷標準：以**客觀**（objective）的**受要約人**（offeree）立場判斷，非主觀（subjective）亦非要約人（offeror）。

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2. 契約之相對性與第三人利益契約（Privity & Third-Party Beneficiary）

107 年第 61 題

Generally, a contract operates to confer rights and impose duties only on the parties to the contract and no other parties. This contractual relationship is summed up in the term ___.

(A) novation (B) privity of contract

(C) third-party beneficiary contract (D) privity in possession

→ 答案：**(B)**

108 年第 60 題

___ is a type of contract where party A enters into a valid contract with party B which stipulates that party B shall render performance for the benefit of party C.

(A) A delegation contract (B) A trust agreement

(C) An assignment of contract (D) A third-party beneficiary contract

→ 答案：**(D)**

考點提示：

- **privity of contract**（契約相對性）：契約僅在當事人間產生權利義務，第三人不受拘束，對應民法「債之相對性」。
- **third-party beneficiary contract**（第三人利益契約）：A與B締約，約定B向C為給付。此為契約相對性之例外。
- 注意干擾：(A) delegation contract（委託契約）、(C) assignment of contract（債權讓與）都涉及第三人，但法律性質不同。

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3. 擔保（Warranty）

107 年第 60 題

In a contract of sale, which of the following warranty might not be honored by the seller?
(A) Express warranty by the seller
(B) Implied warranty of the superior quality of the goods
(C) Implied warranty of merchantability
(D) Implied warranty of fitness for particular purpose
→ 答案：**(B)**

考點提示：

- **express warranty**（明示擔保）：賣方明確保證的品質。
- **implied warranty of merchantability**（默示商品適銷性擔保）：商品應具備一般交易上合理品質。
- **implied warranty of fitness for particular purpose**（默示特定目的適合性擔保）：賣方知悉買方特定需求時，保證商品適合該用途。
- (B) "superior quality"（卓越品質）非法律承認的擔保類型，賣方不保證商品品質「優越」，僅保證達到一般標準。

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4. 不可抗力（Force Majeure）

109 年第 59 題

Which of the following is a clause designed to protect against failures to perform contractual obligations caused by unavoidable events beyond the party's control, such as natural disasters or wars?

(A) Severability (B) Termination

(C) Warranty (D) Force majeure

→ 答案：**(D)**

考點提示：

- **force majeure**（不可抗力，法文借詞）：因不可預見、不可控制之事由（天災、戰爭等），致當事人無法履約時，免除其責任。
- 干擾選項辨識：severability（可分條款）= 部分無效不影響全體；termination（終止）= 契約結束；warranty（擔保）= 品質保證。這些都是契約常見條款但意義不同。

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5. 更新（Novation）

113 年第 59 題

A(n) ___ is an agreement made between two contracting parties to allow for the substitution of a new party for an existing one. The new party replaces the original contracting party as a party to the contract. The original party who is replaced gives up any rights it has against the other original party to the contract.

(A) insolvent (B) novation

(C) third-party beneficiary contract (D) delegation

→ 答案：**(B)**

考點提示：

- **novation**（更新）：以新當事人取代原當事人，原方放棄一切權利。與 delegation（委託）不同：delegation 僅委託履行，原債務人仍負責任；novation 則完全替換。
- (A) insolvent（無償債能力）是財務狀態描述，非契約類型。
- 與民法第 300-302 條「債務承擔」概念相近。

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6. 約定違約金（Liquidated Damages）

108 年第 59 題

When parties enter into a contract, they often wish to calculate the damages which would arise for one or both of the parties in the event that there is a breach of contract by the other party. Provisions in a contract stipulating the amount required to compensate an injured party in the event of a breach are referred to as ___ clauses.

(A) restitution damages (B) liquidated damages

(C) general damages (D) expectation damages

→ 答案：**(B)**

113 年第 60 題

___ is an amount of money agreed upon by both parties to a contract which one will pay to the other upon breaching the agreement or if a lawsuit arises due to the breach.

(A) Installment (B) Liquidated damages

(C) Incidental damages (D) Punitive damages

→ 答案：**(B)**

考點提示：

- **liquidated damages**（約定違約金）：雙方於締約時預先約定違約時應賠償之金額。108 年和 113 年都考過，高頻考點。
- 其他損害賠償類型辨識：
  - restitution damages（回復原狀損害賠償）
  - expectation damages（期待利益損害賠償）
  - incidental damages（附隨損害賠償）
  - punitive damages（懲罰性損害賠償）
- 與 penalty（罰金）之區別：liquidated damages 須為合理預估損害額；penalty 則帶有懲罰性質。

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7. 條件（Condition）

113 年第 61 題

A(n) ___ is an event, not certain to occur, which must occur, unless its non-occurrence is excused, before performance under a contract becomes due.

(A) condition (B) predicament

(C) contingency (D) accustom

→ 答案：**(A)**

考點提示：

- **condition**（條件）：法律上指「不確定是否發生之未來事實」，其成就與否決定契約義務是否生效。
- 干擾選項：predicament（困境）、contingency（偶發事故）語意接近但非法律術語；accustom（使習慣）完全無關。
- 對應民法第 99 條「附條件法律行為」。

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8. 附合契約（Contract of Adhesion）

111 年第 60 題

Mary tried to collect on an airline trip insurance policy she had purchased, but was refused by the insurance company on the ground that the policy applied only to a trip on "scheduled airline" and that "technically" under some obscure regulations Mary's flight was not "scheduled," even though she had every reason to believe that it was. The court held in favor of Mary on the ground that ordinary insurance buyer's understanding should apply, since this was a contract ___.

(A) of beneficence (B) of adhesion

(C) for deed (D) under seal

→ 答案：**(B)**

考點提示：

- **contract of adhesion**（附合契約）：由優勢地位之一方擬定，他方僅得接受或拒絕的定型化契約。保險契約為典型附合契約。
- 作答關鍵：法院以「一般保險消費者之理解」為準，而非保險公司的技術性條款解釋 → 反映附合契約的解釋原則（對擬約方為不利解釋）。
- 對應消保法定型化契約概念：契約條款有疑義時，應為有利於消費者之解釋。

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9. 誠信原則（Good Faith）

111 年第 61 題

Sean submitted and Rene accepted a bid to supply approximately 4,000 tons of trap rock for an airport at a unit price. The parties executed a standard form of "Invitation, Bid, and Acceptance (Short Form Contract)" supplied by Rene, including typed terms "to be delivered to project as required," "delivery to start immediately," and "cancellation by Rene may be effected at any time." However, ___ requires that Rene orders and accepts the rock within a reasonable time unless Rene has given Sean a notice of intent to cancel.

(A) good faith (B) good feeling

(C) good intent (D) good will

→ 答案：**(A)**

考點提示：

- **good faith**（誠信原則）：契約當事人應誠實、公正地對待彼此。即使契約約定一方得「隨時取消」，另一方仍受誠信原則保護，須在合理時間內訂購。
- 干擾選項：good feeling（好感）、good intent（善意，非法律用語）、goodwill（商譽）語意接近但不是法律原則。
- 對應民法第 148 條第 2 項：行使權利、履行義務，應依誠實及信用方法。

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10. 保密協議（Non-Disclosure Agreement）

112 年第 59 題

Read the following clause from an agreement. What kind of agreement is it? "Employee agrees that he will not (i) disclose to any person, either directly or indirectly, any Confidential Information, unless and solely to the extent that such Confidential Information is required to be disclosed by law or pursuant to a final judicial order or decree, (ii) use for his own account or use, cause, facilitate or allow any third party to use Confidential Information in any way, or (iii) remove any Confidential Information or any copy, summary or compilation of any kind of any Confidential Information from the premises of the Company or the premises of any Company's customers."

(A) An employment agreement (B) An informed consent agreement

(C) A non-competition agreement (D) A non-disclosure agreement

→ 答案：**(D)**

考點提示：

- **non-disclosure agreement (NDA)**（保密協議）：員工承諾不洩露、不使用、不攜出機密資訊。
- 作答關鍵：三個禁止行為全部圍繞 "Confidential Information" → 核心在保密，選 NDA。
- 干擾辨識：(A) employment agreement（僱傭契約）範圍更廣；(C) non-competition agreement（競業禁止）限制的是競爭行為而非資訊洩露。

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11. 危險負擔（Risk of Loss）

112 年第 60 題

Danny bought a calf from Happy Farm. After Danny paid, Happy Farm delivered the calf to him. Suddenly, a car rushed out of nowhere and hit the calf. Under Article 373 of R.O.C. Civil Code, Happy Farm is not liable for Danny's loss because Danny has to undertake the ___ when it delivered the calf to Danny.

(A) crisis (B) hazard

(C) risk of loss (D) risk of lost

→ 答案：**(C)**

考點提示：

- **risk of loss**（危險負擔）：買賣標的物交付後，滅失或毀損之風險由買受人負擔（民法第 373 條）。
- 作答關鍵：(D) risk of lost 文法錯誤（lost 是過去分詞，非名詞），可直接排除。(A) crisis（危機）、(B) hazard（危害）非法律術語。

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12. 行為能力（Legal Capacity）

110 年第 59 題

According to the Restatement (Second) of Contracts, a natural person who manifests assent to a transaction has full legal capacity to incur contractual duties thereby unless he is under guardianship, an infant, mentally ill or defective, or ___.

(A) intoxicated (B) unconscious

(C) delirious (D) disoriented

→ 答案：**(A)**

考點提示：

- 欠缺行為能力之四種情形：under guardianship（受監護宣告）、infant（未成年人）、mentally ill or defective（精神疾病或缺陷）、**intoxicated**（醉酒）。
- 作答關鍵：題目已列出前三種，要選的是第四種。(B) unconscious（昏迷）、(C) delirious（譫妄）、(D) disoriented（迷失方向）雖也影響意思能力，但 Restatement 明文列的是 intoxicated。

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13. 契約效力：無效與得撤銷（Void, Invalid & Voidable）

114 年第 60 題

Adam agreed to sell and Rosa agreed to buy Adam's house located in Europe. Unfortunately, Adam did not know that his house has burnt down two days ago. Under Article 246 of R.O.C. Civil Code, the contract is ___.

(A) void (B) reversible

(C) revocable (D) unlawful

→ 答案：**(A)**

108 年第 70 題

If the identity or the character of the property being sold is overtly misrepresented by one of the contracting parties, then the other party's assent is obviously less than meaningful and any agreement that results will be regarded as ___.

(A) fraud in the inducement (B) invalid

(C) lack of legal capacity (D) voidable

→ 答案：**(D)**

考點提示：

- **void**（自始無效）：契約標的自始客觀不能時，契約無效（民法第 246 條）。114 年題中房屋已燒毀 → 給付自始不能 → void。
- **voidable**（得撤銷）：契約成立但有瑕疵，受害方得撤銷。108 年題中當事人被不實陳述（misrepresentation）誘使締約，同意缺乏實質意義 → voidable。
- **invalid** vs. **void**：invalid 多指廣義「不生效力」；void 特指法律上自始無效。
- **fraud in the inducement**（誘因詐欺）：當事人知道自己在締約但被誤導 → 契約 voidable；**fraud in the factum**（本質詐欺）：當事人根本不知交易內容 → 契約 void/invalid。

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14. 授權書（Power of Attorney）

114 年第 65 題

A(An) ___ is an agreement between two parties: a principal and an attorney, which gives the attorney rights to act in the principal's position. For example, a lawyer needs to have her client sign such the agreement before representing the client to speak in court.
(A) agency agreement (B) power of attorney
(C) authorizing statement (D) contract of empowerment
→ 答案：**(B)**

考點提示：

- **power of attorney**（授權書）：授予代理人以本人地位行事之法律文件。114 年新考點。
- **general power of attorney**（一般授權書）：授予廣泛代理權限。
- **special power of attorney**（特別授權書）：僅針對特定事項授權。
- 干擾辨識：(A) agency agreement（代理契約）接近但不精確；(C) authorizing statement 和 (D) contract of empowerment 非標準法律用語。

三、尚未獨立成段但曾出題之重要主題

主題	年度與題號	關鍵詞彙	考點簡述
締結契約	105年第66題	enter into	Abby 在餐廳點餐即 enters into a contract
終止租約	104年第62題	terminate	不定期租賃得隨時終止（民法第 450 條）
遲到承諾	106年第59題	late acceptance	已收入第 1 段，另見主段落

四、一試重點提示

1. **offer → counteroffer → acceptance** 三步驟：counteroffer 等同拒絕原要約（107、109 年考）。
2. **要約判斷標準**：以客觀（objective）之受要約人（offeree）立場判斷（114 年考）。
3. **privity of contract**（契約相對性）vs. **third-party beneficiary contract**（第三人利益契約）：兩者為一組對照，107、108 年各考一次。
4. **void vs. voidable**：void = 自始確定無效（給付不能）；voidable = 有瑕疵但可撤銷（詐欺誘使）。
5. **liquidated damages**（約定違約金）：108 年和 113 年都考，為高頻考點。須能區辨各種損害賠償類型。
6. **force majeure**：不可抗力為法文借詞，與天災、戰爭等不可控事由相關。
7. **contract of adhesion**（附合契約）：解釋原則為「對擬約方為不利解釋」，保險契約為典型。
8. **good faith**（誠信原則）：即使契約有彈性條款（如隨時取消權），仍受誠信原則限制。
9. **power of attorney**（授權書）：general vs. special，114 年新考點。
10. **scrutiny 之外的高頻填空詞**：terminate、acceptance、intoxicated、risk of loss 等，常以情境題考填空。